Section 10. Repayment and Remission of Import Duties

10.1 Introduction

The following definitions apply to this section:

- 'Repayment' means refunding of an amount of import duty which has been paid (Article 5(28) UCC).
- 'Remission' means the waiving of the obligation to pay an amount of import duty which has not been paid (Article 5(29) UCC).

10.2 Situations where import duties may be repaid or remitted

Article 116 (1) of UCC provides that import duty can be repaid or remitted on any of the following grounds:

- Overcharged amounts of import or export duty (Article 116 (1)(a) UCC).
- Defective goods or goods not complying with the terms of the contract (Article 116 (1)(b) UCC).
- Error by the competent authorities (Article 116 (1)(c) UCC).
- Equity (Article 116 (1)(d) UCC).
- Invalidation of a customs declaration (Article 116 (1), 2nd subparagraph UCC & Article 174 UCC)
- Invalidation of a customs declaration for the return of goods imported by private individuals (Article 116 (1), 2nd subparagraph UCC, Article 174 UCC & Article 148(3) UCC DA).

The legal basis for granting repayment and remission under all the grounds quoted above are further explained below.

10.2.1 Overcharged amounts of import or export duty

The legal basis for granting repayment in circumstances where an overcharged amount of import or export duty arises is provided for in Article 117 UCC.

An amount of import or export duty can be repaid or remitted where:

- The amount corresponding to the customs debt initially notified exceeds the amount payable.
- The customs debt was notified to the debtor contrary to point (c) or (d) of the second subparagraph of Article 102(1) UCC.
- In case of retrospective application of a favourable tariff measure (Article 117(2) UCC).